

26STCV08344 26STCV08344

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-28

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Case Number: 26STCV08344 Hearing Date: July 28, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Demurrer - with Motion to Strike

Defendants' Demurrer to Plaintiff's Complaint is sustained in part and overruled in part. Defendants' Motion to Strike is granted with leave to amend.

BACKGROUND

Plaintiff Alfredo Villela (Plaintiff) filed this action against United Therapy Center, Inc. (UTC) and Patricia Cardenas (Cardenas) (collectively, "Defendants"), alleging that UTC employed Plaintiff as a recruiting and case coordinator, that Defendants reduced Plaintiff's hours and changed his reporting structure and duties after he disclosed a serious medical condition and took medical leave, that Plaintiff was subjected to workplace comments disparaging gay people and the use of pronouns, and that Defendants terminated his employment on a stated ground of elimination of role. Cardenas is alleged to have been UTC's Human Resources Director.

The causes of action in the Complaint are: (1) Wrongful Termination in Violation of Public Policy; (2) Retaliation in Violation of FEHA; (3) Disability Discrimination in Violation of FEHA; (4) Failure to Engage in the Interactive Process; (5) Sexual Orientation Discrimination and Harassment in Violation of FEHA; (6) Retaliation in Violation of Labor Code Sections 98.6 and 1102.5; (7) Failure to Provide Meal Periods; (8) Failure to Permit Rest Breaks; (9) Failure to Reimburse Business Expenses; (10) Failure to Issue Accurate Itemized Wage Statements; (11) Failure to Pay All Wages Due at Termination; (12) Unfair Business Practices; and (13) Intentional Infliction of

Emotional Distress.

Defendants filed a Demurrer to the First, Fifth, Sixth, and Thirteenth causes of action and a Motion to Strike the Complaint's request for punitive damages. Plaintiff filed an Opposition to each.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (*Wilson v. Transit Authority of City of Sacramento* (1962) 199 Cal.App.2d 716, 720-721.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) However, it does not accept as true deductions, contentions, or conclusions of law or fact. (*Stonehouse Homes LLC v. City of Sierra Madre* (2008) 167 Cal.App.4th 531, 538.)

A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.*, § 437.)

ANALYSIS

I. Wrongful Termination in Violation of Public Policy

Defendants argue the First Cause of Action fails as against Cardenas because an individual who is not the employer cannot be liable for wrongful termination in violation of public policy. (Demurrer at pp. 5-6.) Plaintiff withdraws the claim as against Cardenas and asks that it proceed against UTC.

(Opp. to Demurrer at pp. 1-2.)

Individuals who do not themselves qualify as employers may not be sued under the FEHA for discriminatory acts, and the same conclusion applies to a common law action for wrongful discharge in violation of public policy. (*Reno v. Baird* (1998) 18 Cal.4th 640, 663-664.) Here, the Complaint alleges only that UTC employed Cardenas as its Human Resources Director. (Compl., ¶ 3.) The Complaint does not allege that Cardenas was Plaintiff's employer, and Plaintiff does not contend otherwise. Defendants advance no argument directed at this cause of action as against UTC. Accordingly, the Demurrer to the First Cause of Action is sustained without leave to amend as against Cardenas and overruled as against UTC.

II. Sexual Orientation Discrimination and Harassment

Defendants argue the Fifth Cause of Action fails as against Cardenas because a supervisor cannot be personally liable for discrimination and because the Complaint pleads no facts showing harassing conduct attributable to Cardenas. (Demurrer at pp. 6-7.) Plaintiff concedes that a manager or agent of the employer cannot be liable for discrimination, argues that a manager may be personally liable for harassment, and proposes to amend to plead discrimination against UTC alone and harassment against both Defendants. (Opp. to Demurrer at pp. 2-4.)

Harassment is treated differently from discrimination under the FEHA. An employee of a covered entity is personally liable for harassment that the employee perpetrates, regardless of whether the employer knew or should have known of the conduct. (Gov. Code, § 12940, subd. (j)(3).) The distinction turns on the nature of the conduct, because commonly necessary personnel management actions such as hiring, firing, job assignments, and performance evaluations do not come within the meaning of harassment. (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65 (*Janken*).)

Here, the Fifth Cause of Action pleads discrimination and harassment together against all Defendants. (Compl., ¶¶ 59-67.) For the reasons stated above, the discrimination theory fails as against Cardenas as a matter of law, and Plaintiff concedes the point. As to harassment, the Complaint attributes the statements about gay people and pronouns to "Defendants and/or their employees" and does not allege that Cardenas made them, was present when they were made, or otherwise participated in them. (Compl., ¶ 62.) The only

conduct the Complaint attributes to Cardenas is her failure to follow through on an agreement to meet and discuss restoring Plaintiff's hours. (Compl., ¶¶ 17, 54.) That is a personnel management action rather than harassment. (Janken, supra, 46 Cal.App.4th at pp. 64-65.) Accordingly, the Demurrer to the Fifth Cause of Action is sustained with leave to amend as against Cardenas.

III. Retaliation Under Labor

Code Sections 98.6 and 1102.5

Defendants argue the Sixth Cause of Action fails because the Complaint alleges no protected activity under either statute. (Demurrer at pp. 7-9.)

Section 1102.5

prohibits an employer from retaliating against an employee for disclosing information to a government or law enforcement agency, to a person with authority over the employee, or to another employee with authority to investigate, discover, or correct the violation, where the employee has reasonable cause to believe the information discloses a violation of a state or federal statute or of a local, state, or federal rule or regulation. (Lab. Code, § 1102.5, subd. (b).) A report or complaint made to the employer is a disclosure within the meaning of the statute, and it remains one even where the recipient already knows of the conduct reported. (People ex rel. Garcia-Brower v. Kolla's, Inc. (2023) 14 Cal.5th 719, 734 (Kolla's).)

The reasonable cause the statute requires is a matter of objective reasonableness. (Ibid.) Retaliation for the protected disclosure need only be a contributing factor in the adverse action. (Lab. Code, § 1102.6; Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 712.)

Section 98.6

protects, among other conduct, an employee who files a bona fide complaint or institutes a proceeding relating to rights within the Labor Commissioner's jurisdiction, and an employee who complains in writing or orally that he is owed unpaid wages. (Lab. Code, § 98.6, subd. (a).) The statute also incorporates by its terms the conduct protected by Chapter 5 of Part 3 of Division 2 of the Labor Code, which includes section 1102.5. (Lab. Code, § 98.6, subd. (a); Kolla's, supra, 14 Cal.5th at p. 731.)

Here, the Complaint alleges that Plaintiff disclosed a serious medical condition and took approved leave under the Family and Medical Leave Act, after which his reporting structure was changed and his hours were cut from 40 per week to 24. (Compl., ¶¶ 12-13, 16.) He contested that reduction in writing to Cardenas in human resources, complaining about the loss of hours following his disability disclosure and asking that his full-time position be restored. (Compl., ¶¶ 17, 36.) Plaintiff further alleges that in doing so he opposed discriminatory practices based on his disability and asked that Defendants comply with their obligations under FEHA. (Compl., ¶ 29.)

Those allegations state a protected disclosure under section 1102.5. Cardenas is alleged to be the human resources director and therefore a person with authority over Plaintiff and with authority to investigate or correct the conduct. (Compl., ¶ 3.) FEHA makes it an unlawful employment practice for an employer to discriminate against a person in compensation or in the terms, conditions, or privileges of employment because of a physical disability or medical condition. (Gov. Code, § 12940, subd. (a).) A reduction of an employee's hours from 40 per week to 24, imposed after he discloses a serious medical condition and takes leave to treat it, is a change in the terms and conditions of his employment, and an employee in that position has reasonable cause to believe the change was made because of the condition. The Complaint pleads that theory directly in its Third Cause of Action, which Defendants do not challenge. Section 1102.5 asks only whether Plaintiff had reasonable cause to believe the information he reported disclosed a violation, so he was not required to identify the statute or to characterize the reduction as unlawful when he complained. Defendants' argument turns on where Plaintiff complained rather than on what he complained about. (Demurrer at pp. 7-8.) Section 1102.5 reaches internal disclosures, including a complaint directed to the employer responsible for the conduct. (Kolla's, *supra*, 14 Cal.5th at p. 734.)

The section 98.6 theory follows from the same allegations. Section 98.6 incorporates by its terms the conduct protected by Chapter 5 of Part 3 of Division 2 of the Labor Code, which includes section 1102.5. (Lab. Code, § 98.6, subd. (a); Kolla's, *supra*, 14 Cal.5th at p. 731.) Because Plaintiff alleges conduct protected by section 1102.5, he alleges conduct protected by section 98.6, and the Court does not reach whether the allegations independently satisfy the statute's wage and Labor Commissioner categories.

Defendants also argue that causation is pleaded in conclusory terms. (Demurrer at p. 9.) The Complaint alleges a second reduction in hours within weeks of Plaintiff's complaint and a termination one week after that on a ground alleged to be pretextual. (Compl., ¶¶ 20, 23-24.) At the pleading stage, these allegations are sufficient. Accordingly, the Demurrer to the Sixth Cause of Action is overruled.

IV. Intentional Infliction of Emotional Distress

Defendants argue the Thirteenth Cause of Action fails because the conduct alleged is ordinary personnel management activity and because workers' compensation exclusivity bars the claim. (Demurrer at pp. 9-10.)

To plead this tort, a plaintiff must allege extreme and outrageous conduct undertaken with the intention of causing, or reckless disregard of the probability of causing, emotional distress, severe or extreme emotional distress, and actual and proximate causation. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) ""Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." [Citation.] '[M]ere insulting language, without more, ordinarily would not constitute extreme outrage' unless it is combined with 'aggravated circumstances.' [Citation.] But "[b]ehavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." [Citations.]" (Smith v. BP Lubricants USA Inc. (2021) 64 Cal.App.5th 138, 147.)

The exclusivity of the workers' compensation remedy does not bar the claim as against UTC. Unlawful discrimination and retaliation in violation of FEHA fall outside the compensation bargain, so a claim resting on that conduct is not subject to exclusivity. (Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75, 101 (Light).) Defendants' reliance on Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 902, does not change that result. That decision addressed a claim resting on whistleblower retaliation rather than on conduct violating

FEHA and was expressly distinguished on that basis in *Light*. (*Light*, supra, 14 Cal.App.5th at p. 100.)

The claim nonetheless fails, because the conduct alleged is not outrageous as a matter of law. The two statements the Complaint identifies are that Defendants and their employees said they were "tired of gay people trying to say what we can and cannot do" and "tired of pronouns, she, he, they." (Compl., ¶ 19.) Offensive as those remarks are, comments of this kind are not the sort of extreme conduct that exceeds all bounds tolerated in a civilized community, at least absent aggravating circumstances which the Complaint fails to allege.

The claim fails as against Cardenas for the further reason that the Complaint identifies no conduct by Cardenas beyond her unfulfilled agreement to meet about Plaintiff's hours. (Compl., ¶¶ 17, 54.) A supervisor's handling of a request concerning an employee's work schedule is a personnel management action, and conduct of that character will not support this tort. (*Janken*, supra, 46 Cal.App.4th at pp. 79-80.) Accordingly, the Demurrer to the Thirteenth Cause of Action is sustained with leave to amend.

MOTION TO STRIKE

Defendants move to strike the punitive damages allegations at paragraphs 26, 33, 40, 48, 58, 67, and 108, and the third item of the prayer for relief. (Motion at pp. 2-3.) Defendants argue the allegations are conclusory recitations of the statute and that the Complaint pleads nothing satisfying Civil Code section 3294, subdivision (b), as to the corporate defendant. (Motion at pp. 4, 5-6.) Plaintiff responds that paragraphs 12 through 24 supply the necessary facts and requests leave to amend. (Opp. to Motion to Strike at pp. 2-5.)

To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 720.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must

be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

Where the defendant is a corporation, the oppression, fraud, or malice must have been committed, authorized, or knowingly ratified by an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b).) Managing agents are corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking, such that their decisions ultimately determine corporate policy. (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 566-567.)

Here, each challenged paragraph consists of a single sentence tracking the statutory terms and alleges no supporting facts. (Compl., ¶¶ 26, 33, 40, 48, 58, 67, 108.) As against UTC, the Complaint pleads nothing addressing subdivision (b). It does not allege that any officer, director, or managing agent committed, authorized, or ratified the conduct, and it alleges no facts showing that Cardenas or anyone else exercised authority sufficient to determine corporate policy. Plaintiff’s Opposition does not address the point. That omission is independently fatal to the request against UTC, and the Court therefore does not reach whether the Complaint otherwise shows malice or oppression. As against Cardenas, no cause of action survives this ruling, so the punitive damages allegations do not correspond to anything. Accordingly, the Motion to Strike is granted with leave to amend.

CONCLUSION

Defendants’ Demurrer is sustained without leave to amend as to the First Cause of Action against Cardenas, sustained with leave to amend as to the Fifth Cause of Action against Cardenas, and sustained with leave to amend as to the Thirteenth Cause of Action against both Defendants. The Demurrer is otherwise overruled. Defendants’ Motion to Strike is granted with

leave to amend. Plaintiff shall file and serve a First Amended Complaint within 20 days of this ruling.